

HOUSE No. 4304

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, July 28, 2025.

The committee on Aging and Independence, to whom was referred the petition (accompanied by bill, House, No. 778) of Kate Lipper-Garabedian, Thomas M. Stanley and Patricia D. Jehlen relative to the long-term care needs of older LGBTQ adults and their caregivers, reports recommending that the accompanying bill (House, No. 4304) ought to pass.

For the committee,

THOMAS M. STANLEY.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the LGBTQ aging commission.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 71 of chapter 3 of the General Laws is hereby amended by striking out
2 subsections (a) and (b), as appearing in the 2022 Official Edition, and inserting in place thereof
3 the following 2 subsections:-

4 (a) There shall be a permanent commission on older lesbian, gay, bisexual, transgender,
5 queer and questioning or LGBTQ, adults and their caregivers to consist of the following
6 members or their designees: the house and senate chairs of the joint committee on elder affairs
7 who shall serve as co-chairs; the secretary of elder affairs; the director of housing and
8 community development; the commissioner of public health; the director of the LGBTQIA+
9 Aging Project; the president of Fenway Health; the executive director of the Gay &
10 Lesbian/GLBTQ Legal Advocates & Defenders, Inc.; a representative of the New England
11 Association on HIV Over Fifty, Inc.; the executive director of MassEquality; the executive
12 director of Mass Home Care; the director of AARP Massachusetts; the executive director of the
13 Massachusetts Association of Councils on Aging, Inc.; the director of the Massachusetts Senior
14 Care Association, Inc.; the director of the Home Care Aides Council; and 5 members to be

appointed by the governor, 1 of whom shall be a member of the Massachusetts bar who practices elder law, 1 of whom shall be an expert in LGBTQ public policy or research and 3 LGBTQ older adults, at least 1 of whom shall be transgender. The governor's appointees shall ensure that the commission has at least 1 representative from each of the following areas: Cape Cod, western Massachusetts, and central Massachusetts.

(b) The commission shall investigate, analyze, and study the health, housing, financial, psychosocial, and long-term care needs of older LGBTQ adults and their caregivers and shall make recommendations to improve access to benefits and services where appropriate and necessary. In furtherance of its duties, the commission shall: (i) examine the impact of the commonwealth's policies and regulations on older LGBTQ adults and make recommendations to ensure equality of access, treatment, care and benefits; (ii) examine strategies to increase provider awareness of the needs of older LGBTQ adults and their caregivers and improve the competence of and access to treatment, services and ongoing care, including preventive care; (iii) assess the funding and programming needed to enhance services to the growing population of older LGBTQ adults; (iv) examine best practices for increasing access, reducing isolation, preventing abuse and exploitation, promoting independence and self-determination, strengthening caregiving, eliminating disparities and improving quality of life; (v) examine whether certain policies and practices, or the absence of certain policies and practice, promote the premature admission of older LGBTQ adults to institutional care; (vi) recommend, as appropriate and necessary, lower cost and culturally appropriate home and community-based alternatives to institutional care; (vii) examine the feasibility of developing statewide training curricula to improve provider competency in the delivery of health, housing and long-term support services to older LGBTQ adults and their caregivers; and (viii) examine outreach

- 38 protocols to reduce apprehension among older LGBTQ adults and their caregivers of utilizing
- 39 mainstream providers.